

August 14, 2026, Civil Law & Motion Tentative Rulings

1. CU0001581 Robert Wilmot, et al. vs. Jason Medich, et al.

One of the parties apparently reserved this date for the filing of a motion; none was filed. This matter is removed from calendar.

2. CU0001924 Robert Ponce vs. Hunt & Sons, Inc., et al

Plaintiff's motion for class list is granted.

Request for Judicial Notice

Defendant Hunt Oil's requests for judicial notice are granted.

Timeliness

Hunt and Sons and Hunt Oil argue that the motion was not timely served and should be denied as such. Based on the hearing date of August 14, 2026, the deadline to serve the present motion electronically was July 21, 2026. *See* Code Civ. Proc. § 1005(b); 1010.6(a)(3)(B). The motion's proof of service reflects service on July 23, 2026. Despite the untimely service, Defendants have filed robust oppositions. The Court exercises its discretion to consider the motion on the merits. *See* Cal. Rules of Ct., Rule 3.1300(d); *Kapitanski v. Von's Grocery Co.* (1983) 146 Cal.App.3d 29, 32.

Precertification Discovery

Plaintiff moves for an order approving a *Belaire-West* notice procedure and compelling Defendants to provide a neutral notice administrator with the names and contact information of the putative class members, subject to an opportunity to object to disclosure. Per Plaintiff, this limited discovery is necessary to determine whether a suitable substitute class representative exists and to permit Plaintiff to seek leave to file a narrowed amended complaint. Defendants Hunt and Sons and Hunt Oil argue generally that precertification discovery should be denied because the risk of abuse of the class action procedure outweighs any conceivable benefit to the class, and specifically, among other things, that: Plaintiff lacks standing to pursue his claims; discovery would unjustifiably invade putative class members' privacy rights, and the potential class members can still seek a remedy on their own. On balance, the Court is persuaded that limited discovery is warranted.

"A class representative who is not a class member or is otherwise unqualified to serve as class representative may, in a proper case, move for precertification discovery for the purpose of identifying a new class representative. California courts have recognized that such a motion for precertification discovery presents a potential for abuse of the class action procedure, but also implicates the rights and interests of potential class members on whose behalf the complaint was filed." *Safeco Ins. Co. of America v. Superior Court* (2009) 173 Cal.App.4th 814, 828.

"The decision to permit or not permit precertification discovery in a class action is committed to the wide discretion of the trial court." *CVS Pharmacy, Inc. v. Superior Court* (2015) 241